

2024 HSC Legal Studies Marking Guidelines

Section I

Multiple-choice Answer Key

Question	Answer
1	B
2	A
3	D
4	D
5	A
6	C
7	B
8	D
9	C
10	B
11	B
12	C
13	C
14	B
15	C
16	A
17	A
18	B
19	D
20	C

Section II

Part A — Human Rights

Question 21

Criteria	Marks
• States the meaning of <i>self-determination</i>	2
• Makes a general statement about <i>self-determination</i>	1

Sample answer:

Self-determination refers to the principle that communities have the right to freely determine their political status, pursue their economic, social and cultural development, and manage their own affairs.

Question 22

Criteria	Marks
• Provides a thorough discussion of the extent to which the Australian Constitution reflects changing social values and ethical standards	6
• Provides a sound discussion of the extent to which the Australian Constitution reflects changing social values and ethical standards	4–5
• Provides some discussion of the extent to which the Australian Constitution reflects changing social values and ethical standards	2–3
• Provides some relevant information	1

Sample answer:

The Australian Constitution, established in 1901, provides a framework to reflect changing values and ethical standards through judicial interpretation, referendums and legislative reforms. The few explicit rights identified in the Constitution, such as the right to freedom of religion (Section 118) arguably leave gaps in protection. Further, the Constitution does not list what the Australian values are. Due to the complexity of the process, Constitutional reform is not often accomplished, for example the *1988 Rights and Freedoms* referendum which aimed at enshrining civil rights failed. Conversely, the Constitution does allow the High Court to uphold implied rights and adapt to changing values. This occurred in the 1997 case, *Lange v Australia Broadcasting Corporation*, which upheld the existence of freedom of political communication. Additionally, the Constitution provides a framework to reflect changing values and ethical standards, however, has limitations due to the complexity of the reform progress.

Question 23

Criteria	Marks
• Demonstrates a thorough understanding of state sovereignty • Provides an informed analysis about the impact of state sovereignty on a contemporary human rights issue	6–7
• Demonstrates a sound understanding of state sovereignty • Provides some analysis about the impact of state sovereignty on a contemporary human rights issue	4–5
• Demonstrates some understanding of state sovereignty • Attempts to make an analysis about the impact of state sovereignty on a contemporary human rights issue	2–3
• Provides some relevant information	1

Sample answer:

State sovereignty influences whether there is recognition, protection or enforcement of human rights, such as the right to be free from slavery. Positively, nation states can use their right to govern themselves without external interference to ratify and enact international laws that uphold human rights. For example, Australia ratified the *2000 Palermo Protocol* by amending *D. 270 of the Criminal Code 2005* (Cth) to criminalise slavery practices including servitude, forced labour and deceptive recruiting for labour or services. An example of enforcement is the case of *R v Wei Tang 2008 HCA* which was Australia's first conviction under this amendment. On the other hand, sovereignty allows states to infringe upon the human rights of its citizens. For example, North Korea had the highest rate of people experiencing modern slavery in 2023. Due to state sovereignty, the international community is unable to interfere with global failures to uphold the right to be free from slavery.

Section II

Part B — Crime

Question 24

Criteria	Marks
• Demonstrates comprehensive understanding of the criminal trial and sentencing process • Makes an informed judgement about the extent to which justice is provided for adult offenders • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	13–15
• Demonstrates substantial understanding of the criminal trial and sentencing process • Makes a sound judgement about the extent to which justice is provided for adult offenders • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	10–12
• Demonstrates an understanding of the criminal trial and/or sentencing process • Makes some judgement about the extent to which justice is provided for adult offenders • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	7–9
• Demonstrates a limited understanding of the criminal trial and/or sentencing process • Makes statements about justice for the adult offender • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	4–6
• Writes in general terms about criminal processes • May include reference to examples such as legislation, cases, media, international instruments and documents • May refer to general legal terms	1–3

Answers could include:

- Court jurisdiction
- The adversary system
- Legal personnel: magistrate, judge, police prosecutor, Director of Public Prosecutions, Public Defender
- Pleas, charge negotiation

- Legal representation, including legal aid
- Burden and standard of proof
- Use of evidence, including witnesses
- Defences to criminal charges:
 - complete defences
 - partial defences to murder
- The role of juries, including verdicts
- Statutory and judicial guidelines
- The purposes of punishment: deterrence (specific and general), retribution, rehabilitation, incapacitation
- Factors affecting a sentencing decision: aggravating and mitigating circumstances
- The role of the victim in sentencing
- Appeals
- Types of penalties including: no conviction recorded, caution, fine, bond, suspended sentence, probation, criminal infringement notice, penalty units, community service order, home detention, periodic detention, forfeiture of assets, imprisonment, diversionary programs
- Alternative methods of sentencing including circle sentencing, restorative justice
- Post-sentencing considerations, including security classification, protective custody, parole, preventative detention, continued detention, sexual offenders registration, deportation.

Section III — Options

Question 25 — Consumers

Question 25 (a)

Criteria	Marks
• Demonstrates extensive understanding of the roles of state and federal government organisations in relation to consumers • Provides an informed analysis of government responses to the rights of consumers • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of the roles of state and federal government organisations in relation to consumers • Provides a sound analysis of government responses to the rights of consumers • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of the roles of state and/or federal government organisations in relation to consumers • Provides some analysis of government responses to the rights of consumers • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of the roles of state and/or federal government organisations in relation to consumers • Makes some statements about government responses to the rights of consumers • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about law concerning consumers • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- State government organisations
- Federal government organisations
- The role of tribunals and courts
- Consumer remedies: individual, society.

Question 25 (b)

Criteria	Marks
• Demonstrates extensive understanding of the law concerning consumers • Makes an informed judgement about the extent to which legal responses effectively address the issues of credit and technology • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of the law concerning consumers • Makes a sound judgement about the extent to which legal responses effectively address the issues of credit and technology • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of the law concerning consumers • Makes some judgement about the extent to which legal responses effectively address the issues of credit and/or technology • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of the law concerning consumers • Makes statements about the effectiveness of legal responses in addressing the issues of credit and/or technology • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about the law concerning consumers • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning consumers:

- Credit
- Technology.

Question 26 — Global Environmental Protection

Question 26 (a)

Criteria	Marks
• Demonstrates extensive understanding about global environmental protection • Provides an informed analysis of the role of Australia's federal structure in the protection of the global environment • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding about global environmental protection • Provides a sound analysis of the role of Australia's federal structure in the protection of the global environment • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding about global environmental protection • Provides some analysis of the role of Australia's federal structure in the protection of the global environment • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding about global environmental protection • Makes some statements about Australia's federal structure in the protection of the global environment • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about global environmental protection • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- Nation state and state sovereignty
- International instruments
- Courts and conferences
- Intergovernmental organisations
- Australia's federal structure
- Australia's responses to international initiatives for global environmental protection.

Question 26 (b)

Criteria	Marks
• Demonstrates extensive understanding about global environmental protection • Makes an informed judgement about the extent to which legal responses effectively address the conflict between the demand for resources and global environmental protection • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding about global environmental protection • Makes a sound judgement about the extent to which legal responses effectively address the conflict between the demand for resources and global environmental protection • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding about global environmental protection • Makes some judgement about the extent to which legal responses effectively address the conflict between the demand for resources and/or global environmental protection • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding about global environmental protection • Makes statements about the effectiveness of legal responses to address the conflict between the demand for resources and/or global environmental protection • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about global environmental protection • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning global environmental protection:

- Legal responses to conflict between the demand for resources and global environmental protection.

Question 27 — Family

Question 27 (a)

Criteria	Marks
• Demonstrates extensive understanding of the role of state and federal governments in relation to family • Provides an informed analysis of government responses to the rights of family members • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of the role of state and federal governments in relation to family • Provides a sound analysis of government responses to the rights of family members • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of the role of state and/or federal governments in relation to family • Provides some analysis of government responses to the rights of family members • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of the role of state and/or federal governments in relation to family • Makes some statements about government responses to the rights of family members • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about family law • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- The concept of family law
- Legal requirements of marriage
- Alternative family relationships
- Legal rights and obligations of parents and children
- Adoption
- Divorce

- Legal consequences of separation:
 - children
 - property
- Dealing with domestic violence
- The roles of:
 - courts and dispute resolution methods
 - non-government organisations
 - the media.

Question 27 (b)

Criteria	Marks
• Demonstrates extensive understanding of legal responses related to family • Makes an informed judgement about the extent to which legal responses effectively address the issues of surrogacy and birth technologies • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of legal responses related to family • Makes a sound judgement about the extent to which legal responses effectively address the issues of surrogacy and birth technologies • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of legal responses related to family • Makes some judgement about the extent to which legal responses effectively address the issues of surrogacy and/or birth technologies • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of legal responses related to family • Makes statements about the effectiveness of legal responses in addressing the issues of surrogacy and/or birth technologies • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about family law • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning family law

- Surrogacy and birth technologies
- Changing nature as parental responsibility
- Legal rights and obligations of parents and children
- The roles of courts and disputes resolution methods.

Question 28 — Indigenous Peoples

Question 28 (a)

Criteria	Marks
• Demonstrates extensive understanding of responses related to Indigenous peoples • Provides an informed analysis of the role of Australia's federal structure in responding to the rights of Indigenous peoples • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of responses related to Indigenous peoples • Provides a sound analysis of the role of Australia's federal structure in responding to the rights of Indigenous peoples • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of responses related to Indigenous peoples • Provides some analysis of the role of Australia's federal structure in responding to the rights of Indigenous peoples • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of responses related to Indigenous peoples • Makes some statements about the role of Australia's federal structure in responding to the rights of Indigenous peoples • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about Indigenous peoples • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- The roles of:
 - the nation state and state sovereignty
- Courts
- Intergovernmental organisations
- Australia's federal structure.

Question 28 (b)

Criteria	Marks
• Demonstrates extensive understanding of legal responses relating to Indigenous peoples • Makes an informed judgement about the extent to which legal responses effectively address the issues of intellectual property and cultural rights • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of legal responses relating to Indigenous peoples • Makes a sound judgement about the extent to which legal responses effectively address the issues of intellectual property and cultural rights • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of legal responses relating to Indigenous peoples • Makes some judgement about the extent to which legal responses effectively address the issues of intellectual property and/or cultural rights • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of legal responses relating to Indigenous peoples • Makes statements about the effectiveness of legal responses in addressing the issues of intellectual property and/or cultural rights • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about legal responses relating to Indigenous peoples • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning Indigenous peoples:

- Loss of cultural rights including language
- Intellectual property rights.

Question 29 — Shelter

Question 29 (a)

Criteria	Marks
• Demonstrates extensive understanding of the role of state and federal governments in relation to shelter • Provides an informed analysis of government responses to the rights of individuals seeking shelter • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of the role of state and federal governments in relation to shelter • Provides a sound analysis of government responses to the rights of individuals seeking shelter • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of the role of state and/or federal governments in relation to shelter • Provides some analysis of government responses to the rights of individuals seeking shelter • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of the role of state and/or federal governments in relation to shelter • Makes some statements about government responses to the rights of individuals seeking shelter • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about laws relating to shelter • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- Right to shelter
- Discuss the right to shelter according to international law
- Obligation to provide shelter
- Examine the obligation of state and federal governments to provide shelter
- Assess the role of the legal system in protecting those securing and providing shelter

- The roles of:
 - courts and tribunals
 - alternative dispute resolution
 - government organisations.

Question 29 (b)

Criteria	Marks
• Demonstrates extensive understanding of legal responses related to shelter • Makes an informed judgement about the extent to which legal responses effectively address the issues of affordability and social housing • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of legal responses related to shelter • Makes a sound judgement about the extent to which legal responses effectively address the issues of affordability and social housing • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of legal responses related to shelter • Makes some judgement about the extent to which legal responses effectively address the issues of affordability and/or social housing • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of legal responses related to shelter • Makes statements about the effectiveness of legal responses in addressing the issues of affordability and/or social housing • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about legal responses related to shelter • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning shelter:

- Affordability
- Social housing including public housing, cooperative housing and community housing.

Question 30 — Workplace

Question 30 (a)

Criteria	Marks
• Demonstrates extensive understanding of the role of state and federal governments in relation to employees • Provides an informed analysis of government responses to the rights of employees • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of the role of state and federal governments in relation to employees • Provides a sound analysis of the role of government responses to the rights of employees • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of the role of state and/or federal governments in relation to employees • Provides some analysis of the role of government responses to the rights of employees • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of the role of state and/or federal governments in relation to employees • Makes some statements about the government responses to the rights of employees • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about the role of state and/or federal governments in relation to employees • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- Regulation of the workplace
- Industrial relations – the state and federal framework
- The roles of:
 - courts and tribunals
 - governmental organisations.

Question 30 (b)

Criteria	Marks
• Demonstrates extensive understanding of legal responses related to workplace • Makes an informed judgement about the extent to which legal responses effectively address the issues of leave and termination of employment • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of legal responses related to workplace • Makes a sound judgement about the extent to which legal responses effectively address the issues of leave and termination of employment • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of legal responses related to workplace • Makes some judgement about the extent to which legal responses effectively address the issues of leave and/or termination of employment • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of legal responses related to workplace • Makes statements about the effectiveness of legal responses in addressing the issues of leave and/or termination of employment • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about legal responses related to workplace • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning workplace:

- Termination of employment
- Leave.

Question 31 — World Order

Question 31 (a)

Criteria	Marks
• Demonstrates extensive understanding of the role of Australia's federal government in relation to world order • Provides an informed analysis of the government responses in promoting and maintaining world order • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of the role of Australia's federal government in relation to world order • Provides a sound analysis of the government responses in promoting and maintaining world order • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of the role of Australia's federal government in relation to world order • Provides some analysis of the government responses in promoting and/or maintaining world order • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of the role of Australia's federal government in relation to world order • Makes some statements about the government responses in promoting and/or maintaining world order • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about legal responses related to world order • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

- Responses to world order
- The roles of:
 - the nation state and state sovereignty
 - Australia's federal government.

Question 31 (b)

Criteria	Marks
• Demonstrates extensive understanding of legal responses related to world order • Makes an informed judgement about the extent to which legal responses effectively ensure the principle of 'responsibility to protect' and the rules regarding the conduct of hostilities • Integrates relevant examples such as legislation, cases, media, international instruments and documents • Presents a sustained, logical and cohesive response to the question using relevant legal terminology and concepts	21–25
• Demonstrates substantial understanding of legal responses related to world order • Makes a sound judgement about the extent to which legal responses effectively ensure the principle of 'responsibility to protect' and the rules regarding the conduct of hostilities • Uses relevant examples such as legislation, cases, media, international instruments and documents • Presents a logical and cohesive response to the question using relevant legal terminology and concepts	16–20
• Demonstrates an understanding of legal responses related to world order • Makes some judgement about the extent to which legal responses effectively ensure the principle of 'responsibility to protect' and/or the rules regarding the conduct of hostilities • Makes some reference to examples such as legislation, cases, media, international instruments and documents • Presents a structured response to the question using relevant legal terminology and concepts	11–15
• Demonstrates limited understanding of legal responses related to world order • Makes statements about the effectiveness of legal responses in ensuring the principle of 'responsibility to protect' and/or the rules regarding the conduct of hostilities • Makes limited reference to examples such as legislation, cases, media, international instruments and documents • Uses some relevant legal terminology	6–10
• Writes in general terms about legal responses related to world order • May include reference to legislation, cases, media, international instruments and documents • May refer to general legal terms	1–5

Answers could include:

Contemporary issues concerning world order:

- The principle of 'responsibility to protect'
- Rules regarding the conduct of hostilities.

2024 HSC Legal Studies

Mapping Grid

Section I

Question	Marks	Content	Syllabus outcomes
1	1	Crime – sentencing and punishment	H1, H3
2	1	Crime – sentencing and punishment	H1, H4
3	1	Human rights – promoting and enforcing human rights	H2, H3
4	1	Crime – the criminal investigation process	H3
5	1	Human rights – promoting and enforcing human rights	H2, H3
6	1	Crime – dealing with international crime	H1
7	1	Crime – the nature of crime	H1
8	1	Human rights – the nature and development of human rights	H1
9	1	Crime – the criminal trial process	H1, H3
10	1	Crime – sentencing and punishment	H1
11	1	Human rights – the nature and development of human rights	H2, H3
12	1	Crime – the nature of crime	H4
13	1	Crime – the criminal investigation process	H1, H4
14	1	Crime – the criminal investigation process	H4
15	1	Crime – the criminal trial process	H1, H4
16	1	Human rights – promoting and enforcing human rights	H1, H4
17	1	Crime – international crime	H2, H3
18	1	Crime – the criminal investigation process	H3
19	1	Crime – the criminal trial process	H4
20	1	Crime – the criminal investigation process	H3

Section II

Part A — Human Rights

Question	Marks	Content	Syllabus outcomes
21	2	Human rights – the nature and development of human rights	H1, H3
22	6	Human rights – promoting and enforcing human rights	H1, H2
23	7	Human rights – investigate a contemporary issue	H1, H4, H6, H7, H8

Section II

Part B — Crime

Question	Marks	Content	Syllabus outcomes
24	15	Crime – the criminal trial process Crime – sentencing and punishment	H1, H2, H3, H4, H6, H7, H8, H9, H10

Section III — Options

Question	Marks	Content	Syllabus outcomes
25 (a)	25	Consumers – consumer redress and remedies	H1, H2, H3, H6, H8, H9, H10
25 (b)	25	Consumers – contemporary issues concerning consumers	H1, H2, H3, H4, H5, H8, H9, H10
26 (a)	25	Global environmental protection – responses to global environmental protection	H1, H2, H3, H6, H8, H9, H10
26 (b)	25	Global environmental protection – contemporary issues concerning global environmental protection	H1, H2, H3, H4, H5, H8, H9, H10
27 (a)	25	Family – the nature of family law Family – responses to problems in family relationships	H1, H2, H3, H6, H8, H9, H10
27 (b)	25	Family – contemporary issues concerning family law	H1, H2, H3, H4, H5, H8, H9, H10
28 (a)	25	Indigenous peoples – responses to indigenous peoples	H1, H2, H3, H6, H8, H9, H10
28 (b)	25	Indigenous peoples – contemporary issues concerning indigenous peoples	H1, H2, H3, H4, H8, H9, H10, H45
29 (a)	25	Shelter – the nature of shelter Shelter – legal protection and remedies associated with securing shelter	H1, H2, H3, H6, H8, H9, H10
29 (b)	25	Shelter – contemporary issues concerning shelter	H1, H2, H3, H4, H5, H8, H9, H10
30 (a)	25	Workplace – regulation of the workplace	H1, H2, H3, H6, H8, H9, H10
30 (b)	25	Workplace – contemporary issues concerning the workplace	H1, H2, H3, H4, H5, H8, H9, H10
31 (a)	25	World order – responses to world order	H1, H2, H3, H6, H8, H9, H10
31 (b)	25	World order – contemporary issues concerning world order	H1, H2, H3, H4, H5, H8, H9, H10